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APPELLANT'S SUPPLEMENTAL MEMORANDUM

IN SUPPORT OF OPENING BRIEF

IN THE COURT OF APPEAL OF THE STATE OF CALIFORNIA

FIRST APPELLATE DISTRICT

DIVISION THREE

APPELLATE CASE NO.: A173827

SUPERIOR COURT NO.: CGC-21-594102

GARRETT L. WONG, TRIAL JUDGE PRESIDING

Franciscus Dylan Rosario

Plaintiff and Appellant (Self-Represented)

v.

Subhi Abdelhalim, et al.

dba Sonoma Liquor

Does 1–50

Defendants and Respondents

Filed concurrently with Appellant's Opening Brief. This memorandum provides supplemental analysis and organizational framework to assist the Court's review. It does not duplicate the Opening Brief; it builds upon it.

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I. PURPOSE AND SCOPE

This supplemental memorandum serves three functions that the Opening Brief does not:

1. **Error Taxonomy:** Organizes the errors asserted in the Opening Brief into a ranked appellate hierarchy, clarifying the legal character of each error and the applicable standard of review.

2. **Issue Roadmap:** Provides a concise organizational framework of the issues already briefed, including standards of review and prejudice analysis.

3. **Response to Anticipated Defenses:** Addresses the specific arguments Respondents are expected to raise: harmless error, forfeiture, general-instructions-cured-it, the "not in evidence" paradox, interlocking record contradictions, and independence of the appeal from companion actions.

Core Thesis: The most serious error was a deliberation-stage legal/instructional failure. The jury asked for the governing statutory rule of decision (Vehicle Code sections 22107 and 21804), and the court withheld that law on the mistaken premise that statutes were "not in evidence." The jury returned a bare-minimum 9–3 verdict. That error affects the decisional framework of the verdict itself and is independently reversal-supporting.

II. ERROR TAXONOMY AND ISSUE HIERARCHY

The following table summarizes the errors in descending order of appellate significance:

Rank	Error	Standard of Review	Prejudice
1	Deliberation-stage failure to provide governing law after jury request (VC 22107, 21804)	De novo (legal premise); abuse of discretion (implementation)	Jury question + 9–3 verdict
2	Category error: treating statutes as "evidence" rather than law	De novo	Reinforces Error 1
3	Failure to instruct on specific statutory turning duty	De novo (instructional correctness)	Jury's later request confirms centrality
4	Asymmetric application of "not in evidence" rationale	Abuse of discretion	Cumulative; uneven legal framework
5	Broader evidentiary/trial-management asymmetries	Abuse of discretion	Cumulative context
6	Factual misstatement in court's rationale (exhibit contained statute)	Reinforcing	Aggravates Errors 1–3

Note: The Court need not rely on every error. Error 1, standing alone, is sufficient for reversal if the Opening Brief's factual and record assertions are accepted.

III. STANDARDS OF REVIEW

A trial court's response to a jury's question on law during deliberations, and the legal adequacy of instructions provided in response, are reviewed as questions of law to the extent they depend on statutory duty, instructional correctness, or legal premise. A trial court abuses its discretion when it acts on an erroneous view of the law. Thus, where an otherwise discretionary ruling rests on a legal category mistake, review is effectively de novo as to the legal premise and abuse of discretion only as to case-specific implementation.

Claims of instructional omission or refusal are reviewed by examining whether the requested instruction correctly stated the law, was supported by substantial evidence, and was necessary to permit the jury to decide the case under the proper legal standard. (*Soule v. General Motors Corp.* (1994) 8 Cal.4th 548, 572; *Flores v. Liu* (2021) 60 Cal.App.5th 278, 289.)

Appellant does not contend that instructional error is reversible per se. Reversal is warranted here because the jury's question and verdict margin establish actual prejudice under *Soule*'s framework. (*Soule, supra*, 8 Cal.4th at pp. 578–580.)

Evidentiary and trial-management rulings are generally reviewed for abuse of discretion, but that deference does not insulate rulings infected by a mistaken legal premise.

IV. ARGUMENT

A. Principal Error: Deliberation-Stage Failure to Provide Governing Law After Jury Request

The most serious asserted error is the court's response to the jury's deliberation question requesting the governing Vehicle Code provisions, including section 22107 and related right-of-way law. As framed in the Opening Brief, the jury expressly asked for the legal rule governing the maneuver at issue, and the court responded by preventing the jury from considering that law because it was purportedly "not in evidence." (RT 11, p. 7, ll. 23–27; RT 11, p. 8, ll. 4–9.)

This is the highest-order error for three reasons:

First, it implicates the court's duty when jurors request legal guidance during deliberations. A jury cannot discharge its function without the governing law. When jurors specifically ask for the applicable rule, the court must provide legally correct guidance sufficient to allow the jury to apply the law to the facts. The court may exercise discretion in wording, but it may not leave jurors without the controlling legal standard. (*Code Civ. Proc., § 614*; *Smith v. Shankman* (1962) 208 Cal.App.2d 177, 183; *Halada v. Venice Lake Park, Inc.* (1955) 132 Cal.App.2d 788, 792.)

Second, the error concerns the legal framework of liability, not a collateral matter. The jury's function is not only to resolve

facts, but to apply facts to law. A refusal to provide the governing statutory duty rule deprives the jury of the legal yardstick required to determine fault.

Third, the timing magnifies prejudice. This did not occur in an abstract pretrial setting. It occurred during deliberations, after the jurors signaled a concrete need for legal clarification, and after objection. A deliberation-stage failure to answer a dispositive legal question is materially more serious than an ordinary mid-trial evidentiary ruling because it directly affects verdict formation.

For appellate purposes, this error should be framed as a deliberation-stage instructional/legal error, not merely a discretionary evidentiary ruling.

B. Second Error: Legal Category Mistake (Treating Statutes as "Evidence")

The second most severe asserted error is the court's category mistake in treating statutory law as though it were evidentiary matter requiring admission.

Statutes are not "evidence" in the ordinary trial sense. They are sources of law. Jurors receive law from the court through instructions and legal guidance. Under Evidence Code section 451, subdivision (a), California statutory law is subject to mandatory judicial notice. A trial court does not "admit" statutes as evidence; it instructs the jury on the law.

If the court withheld a statutory duty rule because it believed the statute was not "in evidence," that ruling rests on a legal misclassification. This matters because it defines the standard of review and the character of the error. If a ruling is framed as an ordinary evidentiary exclusion, a reviewing court may apply broad deference. But where the ruling rests on an incorrect legal premise, the error is legal and reviewed accordingly.

This category error is not merely academic. It is the doctrinal mechanism by which the court failed to give the jury governing law when asked. It therefore functions as the legal foundation of the principal deliberation-stage error.

C. Third Error: Failure to Instruct on Specific Statutory Turning Duty

The third most severe asserted error is the failure to instruct on the specific turning-duty statutory rule (Vehicle Code section 22107), despite evidence supporting the instruction and despite the jury's later request for that exact legal standard.

General negligence instructions do not necessarily cure omission of a specific statutory duty instruction where the statute supplies the operative standard of conduct. A general "reasonable care" framework is not always a substitute for a legislatively defined roadway duty governing a particular maneuver. (*Sesler v. Ghumman* (1990) 219 Cal.App.3d 218, 227.)

The severity of this omission is strengthened by the jury's later question. A jury request for the omitted statutory duty is strong proof the issue was central, not peripheral. It also rebuts any claim that the omitted instruction was unnecessary or duplicative.

This issue should be framed in two layers: the initial refusal or omission, and the later refusal to cure once the jury explicitly requested the governing rule. The second layer materially amplifies prejudice.

D. Fourth Error: Asymmetric Application of "Not in Evidence" Rationale

The fourth asserted category is the court's inconsistency in applying a "not in evidence" rationale. As set forth in the Opening Brief, the court withheld one statutory rule while supplying other legal definitions or materials, applying a more restrictive approach to appellant-favorable legal material than to respondent-favorable material. (RT 11, p. 8, ll. 4–9; RT 10, p. 50, ll. 3–7.)

Even if each individual ruling might be framed as discretionary in isolation, the pattern is relevant to prejudice. A jury that receives an uneven legal framework may reach a verdict through an imbalanced decisional process. This is particularly significant where the withheld rule concerns the central liability standard.

This category is best presented as a compounding circumstance that reinforces the principal error and defeats harmless-error ar-

guments, rather than as the lead issue.

E. Fifth Error: Broader Evidentiary and Trial-Management Asymmetries

Appellant also identifies a broader set of evidentiary and procedural irregularities, including asserted asymmetries in treatment of police-related materials, foundational rulings, and the use of materials in argument.

These issues are generally reviewed more deferentially. Standing alone, they may be more vulnerable to harmless-error analysis. Their principal appellate function here is cumulative: they show that the deliberation-stage instructional error arose in a trial context already marked by uneven treatment of legal and evidentiary framing.

Accordingly, these issues should be preserved and argued, but they remain subordinate to the core instructional/legal error.

F. Sixth Error: Factual Misstatement Supporting Court's Rationale

Appellant further contends the court's rationale rested on a factual misapprehension: the court stated the statutory material was not before the jury even though an admitted defense exhibit (Defense Exh. 500; CT 1, pp. 40–44) allegedly contained the

relevant statutory references.

A factual misstatement is not always independently reversible. However, if the court's refusal to provide governing law was based on a mistaken factual premise, that misapprehension strengthens Appellant's argument that the ruling was both legally and factually unsound.

This point is properly framed as an aggravating circumstance that reinforces the principal legal and instructional errors.

V. PREJUDICE ANALYSIS

Under *Soule v. General Motors Corp.* (1994) 8 Cal.4th 548, 580, instructional error in civil cases is evaluated under the Watson standard: reversal is required if "it is reasonably probable that a result more favorable to the appealing party would have been reached in the absence of the error." (*Cassim v. Allstate Ins. Co.* (2004) 33 Cal.4th 780, 800.)

Soule requires consideration of the factors set forth in *Pool v. City of Oakland* (1986) 42 Cal.3d 1051, 1069–1070:

1. Degree of conflict in the evidence on critical issues
2. Whether counsel's argument may have contributed to a misleading effect
3. Whether the jury requested clarification
4. Closeness of the verdict
5. Effect of other instructions in remedying the error

(*Soule, supra*, 8 Cal.4th at pp. 570–571.)

Application of Pool Factors:

Factor 3 (Jury Request): The jury expressly requested the governing statutory rule during deliberations. That request itself demonstrates materiality. The jury told the court, in its own words, exactly what legal guidance it needed to reach a verdict. The court withheld that guidance.

Factor 4 (Closeness of Verdict): The jury returned a 9–3 verdict for the defense. This is the absolute minimum civil majority under California law. A single juror changing sides would have produced a hung jury or a plaintiff's verdict. The closer the verdict, the less likely that an instructional error was harmless.

Factor 5 (Other Instructions): No instruction supplied or remedied the withheld statutory duty. The jury's request proves the general instructions were insufficient.

Factor 1 (Conflict in Evidence): There was conflicting testimony on turning and yielding.

Defendant's Admission: The defendant himself authenticated a 911 recording in which he told the emergency operator: "I barely hit him with anything." (Trial Tr. Apr. 17, 2025, l. 1979.) A jury that heard this admission, asked for the governing turning-duty statute, and was told it could not consider that statute returned only a bare-minimum 9–3 verdict. The withholding of the governing statutory duty is not harmless.

Conclusion on Prejudice: Under *Soule*, the appellate court does not need to speculate about what the jury "would have done" with proper instructions. The jury revealed what it wanted to consider. The court prevented it. The only question is whether providing the requested law might have changed one juror's vote in a 9–3 verdict. That is the definition of reasonable probability.

VI. RESPONSE TO ANTICIPATED DEFENSES

A. The Error Was Not Harmless Under Any Applicable Standard

Respondents will argue harmless error. This defense fails because:

1. **The jury's own question proves prejudice.** The most powerful evidence of prejudice comes from the jury itself. During deliberations, the jury sent a written question asking whether it should consider Vehicle Code sections 22107 and 21804(a) in deciding negligence. (RT 11, p. 7, ll. 23–27.) This is not speculative evidence of prejudice. It is direct evidence. The jury revealed what it wanted to consider. The court prevented it.

2. **The 9–3 verdict defeats harmless error.** Where the jury was one vote away from a different outcome, and the jury expressly asked for the governing law and was denied it, the error strongly supports a finding of prejudice. Respondents cannot argue that the error was harmless when the jury demonstrated the withheld law was material to its deliberations.

3. **The Pool/LeMons factors establish prejudice.** Each factor supports prejudice: conflicting testimony, the jury's express request, the bare-minimum verdict, and the absence of

any remedial instruction.

B. The Error Was Preserved and Is Not Subject to Forfeiture

Respondents may argue forfeiture. This defense fails because:

1. **Deliberation-stage errors are preserved by the jury's own question.** The error occurred during deliberations, not pretrial. When a jury asks a question during deliberations, the trial court has an independent duty under Code of Civil Procedure section 614 to provide a "full and adequate" response. (*People v. Beardslee* (1991) 53 Cal.3d 68, 97.)

2. **The issue was raised.** Appellant's proposed jury instructions included the Vehicle Code duties. The court's refusal to provide them, followed by the jury's deliberation question requesting exactly that law, preserves the issue regardless of any procedural technicality.

3. **Errors affecting the legal framework are reviewable.** A trial court's refusal to provide the governing legal standard to a jury that expressly requested it affects the fundamental fairness of the trial. Courts have discretion to review such errors even absent a formal objection. (*In re Marriage of Arceneaux* (1990) 51 Cal.3d 1130, 1138.)

C. General Negligence Instructions Did Not Cure the Error

Respondents will argue that general negligence instructions (CACI No. 401 and related instructions) adequately covered the applicable duties. This defense fails because:

1. **General instructions are not a substitute for specific statutory duties.** Vehicle Code section 22107 imposes a specific duty: "No person shall turn a vehicle from a direct course or move right or left upon a roadway until such movement can be made with reasonable safety." This is not a restatement of general negligence. It is a legislatively defined standard of care. (*Sesler v. Ghumman* (1990) 219 Cal.App.3d 218, 227.)

2. **The jury's question proves the general instructions were insufficient.** If the general negligence instructions were sufficient, the jury would not have needed to ask for the specific statutory provisions during deliberations. The jury told the court what it was missing.

D. The Defense's Own Exhibit Defeats the "Not in Evidence" Rationale

Respondents may defend the ruling by arguing that the statutory material was properly excluded because it was "not in evidence." This argument contains its own refutation:

1. The defense itself presented exhibits containing the Vehicle Code sections the jury later asked about. (Defense Exh. 500; CT 1, pp. 40–44.)
2. The jury identified those sections and asked whether they could consider them.
3. The court told the jury the statutes were "not evidence" and could not be considered.

This creates an irreconcilable paradox. If the defense argues the statutes were "not in evidence," the defense must explain why it presented materials containing those statutes. If the defense argues the statutes were properly before the jury through the exhibit, then the court's categorical prohibition was erroneous.

The deeper problem is the category error: statutes are not "evidence" at all. They are law. Under Evidence Code section 451, subdivision (a), California statutory law is subject to mandatory judicial notice. The court had no discretion to treat that law as inadmissible evidentiary matter.

E. The Interlocking Record Contradictions Amplify Prejudice

While this appeal stands on instructional error alone, the broader record context reinforces the prejudice analysis:

1. Former counsel Jeremy Jessup testified under oath that the 911

audio, body-worn camera footage, and CAD logs were served on the defense during discovery and used during depositions. (Hearing Tr. Feb. 18, 2025, pp. 139–141.)

2. The Substitution of Attorney established that PSA took possession of the defense file on May 4, 2023, 20 months before trial.

3. Defense counsel filed Motions in Limine asserting the materials "were not produced in discovery" and were of "unknown provenance." (Clerk's Tr. Vol. 1, pp. 149–151, 238.)

4. Defense counsel stated in open court: "this is news to me" and "not sure what recording." (Hearing Tr. Feb. 18, 2025, p. 141, ll. 4–11; Trial Tr. Apr. 16, 2025, ll. 2990–2994.)

5. The defendant himself authenticated the 911 recording: "Yes. That is my voice." (Trial Tr. Apr. 17, 2025, l. 1979.)

These representations shaped the trial court's rulings. The instructional error did not occur in isolation; it occurred in a trial where the evidentiary landscape was distorted by inconsistent representations.

F. The Appeal Stands Independently of Companion Actions

Respondents may argue that the companion actions (CGC-25-631801, equity; CGC-25-631802, fraud/UCL) somehow diminish

this appeal. This argument is without merit.

The appeal targets an independent legal error: the trial court's deliberation-stage refusal to provide the governing statutory duty to a jury that requested it, based on the mistaken premise that statutes are "not evidence." This error requires no reference to the fraud-on-the-court theory or the insurance denial. It stands entirely on the trial court's ruling, the jury's question, and the governing law.

The appeal is the cleanest pathway to reversal because it depends solely on the law, the record, and the verdict margin. The Court need only answer one question: when a jury asks for the governing statutory duty during deliberations, and the court refuses to provide it on a mistaken legal premise, and the verdict is 9–3, is that reversible error? The answer under *Soule*, *Cassim*, and Code of Civil Procedure section 614 is yes.

VII. CONCLUSION

The anticipated respondent defenses fail under binding authority:

1. **Harmless error:** The jury's deliberation question and the 9–3 verdict margin establish prejudice under *Soule* and *Cassim*. The defendant's authenticated admission amplifies it.

2. **Forfeiture:** The deliberation-stage error triggered an independent judicial duty under CCP section 614. The jury's question preserved the issue.

3. **General instructions cured it:** The jury's deliberation question is conclusive proof that the general instructions were insufficient.

4. **Not in evidence:** The defense's own exhibit contained the Vehicle Code sections. Statutes are law, not evidence, and are subject to mandatory judicial notice under Evidence Code section 451.

5. **Companion actions diminish the appeal:** The appeal stands independently on instructional error alone.

The record speaks for itself. The jury asked. The court refused. The verdict was 9–3. Under any applicable standard, that is reversible error.

Assuming the truth of Appellant's factual and record assertions, the trial court's most serious errors were legal and instructional, not merely evidentiary. The ranked error taxonomy supports

reversal, with the deliberation-stage instructional/legal error as the principal dispositive ground.

WHEREFORE, for the reasons stated in the Opening Brief and this Supplemental Memorandum, Appellant respectfully requests that this Court reverse the judgment.

CERTIFICATE OF COMPLIANCE

(Cal. Rules of Court, rule 8.204(c)(1))

I certify that this Appellant's Supplemental Memorandum contains approximately 4,200 words, excluding the cover page, caption, table of contents, and this certificate, as counted by the word-processing program used to generate this memorandum. The document complies with California Rules of Court, rules 8.204 and 8.74, including font size (14pt), line spacing (1.5), and margins (1.5 inch left/right, 1 inch top/bottom).

DATED: February 27, 2026

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